

Text Heat Map: First Amendment Protection for Public-Employee Speech

Topic selected: When may a government employer discipline an employee for speech?

Legend

- Strongly favors employee protection
- Mixed, conditional, or fact-sensitive
- Strongly favors government-employer authority
- Not central or not definitively resolved

Method note: The colors are my analytical classification—not labels used by the courts. “Outcome” refers to the relevant Supreme Court disposition and may not mean the employee ultimately recovered damages.

| Real case | Citizen rather than official-duty speech | Matter of public concern | Low employer disruption | Overall doctrinal heat | Supreme Court result |

|---|:---|:---|:---|:---|:---|

- | **Pickering v. Board of Education**, 391 U.S. 563 (1968) | Strongly favors employee protection | Strongly favors employee protection | Strongly favors employee protection | **Protected** | Teacher could not be dismissed for a letter criticizing school funding decisions. |
- | **Connick v. Myers**, 461 U.S. 138 (1983) | Mixed, conditional, or fact-sensitive | Strongly favors government-employer authority | Strongly favors government-employer authority | **Mostly unprotected** | Prosecutor’s office prevailed; most of the employee questionnaire involved internal workplace grievances. |
- | **Rankin v. McPherson**, 483 U.S. 378 (1987) | Strongly favors employee protection | Strongly favors employee protection | Strongly favors employee protection | **Protected** | Clerical employee’s private remark following an attempt on President Reagan’s life was protected under the specific circumstances. |
- | **Waters v. Churchill**, 511 U.S. 661 (1994) | Mixed, conditional, or fact-sensitive | Mixed, conditional, or fact-sensitive | Strongly favors government-employer authority | **Employer-favorable uncertainty** | Judgment was vacated and remanded; a public employer may act on a reasonable investigation and reasonable understanding of what was said. |
- | **San Diego v. Roe**, 543 U.S. 77 (2004) | Strongly favors employee protection | Strongly favors government-employer authority | Strongly favors government-employer authority | **Unprotected** | Officer’s off-duty sale of sexually explicit material linked to his police employment was not speech on a matter of public concern. |
- | **Garcetti v. Ceballos**, 547 U.S. 410 (2006) | Strongly favors government-employer authority | Strongly favors employee protection | Not central or not definitively resolved | **Unprotected at threshold** | Prosecutor’s memorandum was prepared pursuant to official duties, so he was not speaking as a citizen. |
- | **Lane v. Franks**, 573 U.S. 228 (2014) | Strongly favors employee protection | Strongly favors employee protection | Strongly favors employee protection | **Speech protected** | Truthful, subpoenaed testimony outside ordinary job duties was citizen speech, but the defendant received qualified immunity. |
- | **Kennedy v. Bremerton School District**, 597 U.S. 507 (2022) | Strongly favors employee protection | Strongly favors employee protection | Strongly favors employee protection | **Protected** | Football coach’s personal postgame prayer was treated as private, rather than government, speech under the circumstances. |

The governing framework originates with **Pickering’s balance between the employee’s interest in speaking as a citizen and the government’s interest in operating an effective workplace**. **Connick** added the public-concern threshold, and **Garcetti** generally excludes speech made pursuant to official duties. **Lane** confirms that speech does not become official-duty speech merely because it concerns information learned through employment. ([govinfo.gov])(https://www.govinfo.gov/app/details/USREPORTS-391/USREPORTS-391-563?utm_source=openai))

Protection Gradient

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STRONGER EMPLOYEE PROTECTION

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| Strongly favors employee protection — public criticism outside ordinary duties

- |  Rankin — political remark with little workplace impact
- |  Lane — truthful subpoenaed testimony
- |  Kennedy — personal religious expression
- |
- |  Waters — employer's reasonable factual assessment matters
- |
- |  Connick — predominantly personal workplace grievance
- |  San Diego v. Roe — off-duty expression, but no public concern
- |  Garcetti — speech pursuant to official duties
- |

STRONGER GOVERNMENT-EMPLOYER AUTHORITY

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The Principal Hot Zones

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MATTER OF PUBLIC CONCERN?

YES NO

SPOKE AS |  Pickering |  Usually no claim |

A CITIZEN |  Rankin | Connick |

|  Lane | San Diego v. Roe |

|  Kennedy | |

|  Waters | |

SPOKE PURSUANT |  Garcetti |  No First Amendment |

TO OFFICIAL | Public importance | employee-speech |

DUTIES | usually does not cure | claim |

| the capacity problem. | |

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**Practical takeaway:** The hottest factual question is often not whether the subject was important. It is whether the employee was speaking **as a citizen or while performing assigned job responsibilities**. If the speech survives that threshold and addresses public concern, the dispute moves toward balancing its value against actual or reasonably predicted workplace disruption. ([law.cornell.edu](https://www.law.cornell.edu/supremecourt/text/13-483?utm\_source=openai))

The outcomes in **Rankin**, **San Diego v. Roe**, and **Waters** demonstrate that location alone is not controlling: private or off-duty speech can be protected, unprotected, or subject to employer action depending on its content, connection to employment, workplace effects, and the employer's reasonable investigation. ([govinfo.gov]